

DEPARTMENT OF HOMELAND SECURITY
Transportation Security Administration

**TERMS AND CONDITIONS FOR ACCESS TO SENSITIVE SECURITY INFORMATION
NON-DISCLOSURE AGREEMENT**

INSTRUCTIONS: This Non-Disclosure Agreement (NDA) may be used in lieu of or to supplement DHS Form 11000-6 by those individuals and entities who are granted access to Sensitive Security Information (SSI) where it is determined to be appropriate to document additional restrictions for access to SSI (e.g., 15e, MOU). The recipient's name, authorized entity, and purpose of disclosure must be completed in advance by the issuing program office. The program office, Contracting Officer Representative (COR), or Contracting Officer, as appropriate, is responsible for maintaining the executed NDA in accordance with agency record disposition schedules.

SECTION I. Terms and Conditions

I, _____, (hereinafter, the undersigned), an individual official, employee, consultant, or subcontractor of or to, _____, (the Authorized Entity), intending to be legally bound, hereby consent to the terms and conditions of this Non-Disclosure Agreement (hereafter, Agreement) in consideration of being granted conditional access to SSI by TSA.

I understand and agree to the following terms and conditions:

1. As used in this Agreement, SSI is that information defined in 49 CFR Part 1520 (see attached) but also includes any information not specifically mentioned in Part 1520, but marked as "Sensitive Security Information" or "SSI".
2. The undersigned is granted conditional access to SSI contingent upon execution of this Agreement for the sole purpose of,
_____. This approval will permit the undersigned to have conditional access to specific SSI records as TSA determines may be necessary for the described purposes. This Agreement does not entitle the undersigned to have access to materials that TSA has determined, in its sole discretion, are inappropriate for disclosure pursuant to this Agreement. This may include sensitive but unclassified information provided to TSA by other agencies of the United States Government where TSA has determined there is no need to know.
3. The undersigned will notify TSA of any request for SSI including, but not limited to, requests made in the context of a public records request, from the media, operational sharing, judicial, or other administrative proceeding. The undersigned will not disclose SSI unless TSA has authorized it in writing and the person or entity has executed an NDA with TSA.
4. The undersigned will safeguard and handle SSI in accordance with the policies and procedures outlined in 49 CFR Part 1520 and the SSI Best Practices Guide for Non-DHS Employees and Contractors. These safeguarding procedures shall include SSI recognition, identification, and marking of materials that possibly contain SSI, including entity-developed materials. The undersigned will follow restrictions on disclosure, storage, handling, sharing, dissemination, and destruction of SSI, including information electronically stored or transmitted regardless of who owns or controls the underlying systems. The undersigned, without exception, shall place this requirement in all subcontracts, joint venture agreements, and teaming agreements related to the purpose of this disclosure.
5. In accordance with 49 CFR Part 1520.9(c), if the undersigned becomes aware of or has reason to believe there was a breach of SSI (i.e., loss of control, compromise, unauthorized disclosure, or access for an unauthorized purpose, whether physical or electronic) the undersigned will immediately notify TSA.
6. The undersigned recognizes that the unauthorized disclosure of SSI could compromise the safety and security of transportation and may be grounds for civil penalties and other consequences as set forth in 49 CFR Part 1520.17.
7. This agreement is made and intended for the benefit of the United States Government. If the undersigned violates the terms or conditions of this Agreement, such violation may result in the cancellation of its conditional access to SSI. This may serve as a basis for denying the undersigned conditional access to other United States Government information, both classified and sensitive, in the future.
8. If the undersigned violates the terms or conditions of this Agreement, the undersigned acknowledges that the United States Government may seek any remedy available to it to enforce this Agreement, including but not limited to, applying for a court order prohibiting disclosure of information, instituting a civil penalty against it pursuant to 49 U.S.C. § 46301 and 49 CFR Part 1520, or taking other enforcement or corrective action.
9. Unless and until the undersigned is provided a written release by TSA from this Agreement or any portion of it, all conditions and obligations contained in this Agreement shall apply both during the undersigned's period of conditional access, which shall terminate at the conclusion of their need-to-know for the circumstances defined under Item 2 of these terms and conditions, and at all times thereafter. Unless TSA specifically allows otherwise, all records designated as SSI and all copies thereof must be returned to TSA within 30 days after the termination of the undersigned's need-to-know or shall be certified to TSA as having been destroyed.
10. Each provision of this Agreement is severable. If any administrative or judicial tribunal should find any provision of this Agreement to be unenforceable, all other provisions shall remain in full force and effect.
11. By granting the undersigned conditional access to information in this context, the United States Government does not waive any statutory or common law evidentiary privileges or protections that it may assert in any administrative or judicial proceeding to protect SSI to which the undersigned has been or may be given conditional access under the terms of this Agreement.

12. These terms and conditions are consistent with and do not supersede, conflict with, or otherwise alter the undersigned's obligations, rights or liabilities created by Executive Orders 12356 and 12968; Section 7211 of Title 5, United States Code (governing disclosures to Congress); Section 1034 of Title 10, United States Code, as amended by the Military Whistleblower Protection Act (governing disclosure to Congress by members of the military); Section 2302(b)(8) of Title 5, United States Code, as amended by the Whistleblower Protection Act (governing disclosures of illegality, waste, fraud, abuse or public health or safety threats); the Intelligence Identities Protection Act of 1982 (50U.S.C. § 421 et seq.) (governing disclosures that could expose confidential Government agents), and other statutes which protect against disclosure that may compromise the national security, including Sections 641, 793, 794, 798, and 952 of Title 18, United States Code, and Section 4(b) of the Subversive Activities Act of 1950 (50 U.S.C. § 783(b)). The definitions, requirements, obligations, rights, sanctions and liabilities created by said Executive Order and listed statutes are incorporated into this Agreement and supersede this Agreement to the extent of any conflict.
13. These terms and conditions are consistent with and do not supersede, conflict with, or otherwise alter the undersigned's obligations, rights, or liabilities created by existing statute or Executive order relating to (1) classified information, (2) communications to Congress, (3) the reporting to an Inspector General of a violation of any law, rule, or regulation, or mismanagement, a gross waste of funds, an abuse of authority, or a substantial and specific danger to public health or safety, or (4) any other whistleblower protection. The definitions, requirements, obligations, rights, sanctions, and liabilities created by controlling Executive orders and statutory provisions are incorporated into this agreement and are controlling.
14. The undersigned's execution of this Agreement shall not nullify or affect in any manner any other secrecy or nondisclosure Agreement that the undersigned has executed or may execute with the United States Government.
15. I make this Agreement in good faith, without mental reservation or purpose of evasion, and certify that I am authorized to do so.

SECTION II: Acknowledgement

I make this Agreement in good faith, without mental reservation or purpose of evasion, and certify that I am authorized to do so.

Signature:

Date:

Name:

Title

SECTION III: Acceptance

This Agreement was accepted by the undersigned on behalf of the Transportation Security Administration under 49 CFR Part 1520.7 as a prior condition of conditional access to SSL.

Signature:

Date:

Name:

Title/ Office:

This form is not subject to the requirements of P.L. 104-13, "Paperwork Reduction Act of 1995" 44 USC, Chapter 35.